Work Order No.		WO Date	Amendment No.	Amendment Date
BU-C&E/ E-Loco Green Field Factory / 26560		15-MAY-17	0	
Name of the Contractor/Vendor:				
NIHVA TECHNOLOGIES PRIVATE LIMITED 187, G-Block, Thermax Chowk,Above Renault Showroom, MIDC Chinchwad,PUNE, MAHARASHTRA-411019 India		MSMED No.		
		Contractor's PAN No.	AAECN0437H	
		Contractor's Service Tax No.	AAECN0437HSD001	
Contact Person	MR.Mallikarjun Patil	Details of Annexure attached to this WO		
Phone	(020)66304033, 8551096333	1) Annexure -1: Contract Price 2) Annexure -2: GCC for Services 3) Annexure-3: GCC for Safety 4) Annexure-4: RTGS Format		
Email	arjun.patil@nihva.com			
Fax				

Name of TPL's Contact Person:	Dept: Projects	Telephone No.: 40-6623 8526/9848532903
H.Rangaswamy	Email id: rangaswamy@tataprojects.com	

Dear Sirs,

Sub: Fixing, Testing & Commissioning of Automatic Motorized and Manual Gates for E-Loco Factory at Madhepura, Bihar, India.

Ref: 1.Your initial offer Mail Dt: 10.05.17
2.Your Final offer Mail Dt: 11.05.17
3.Filled Commercial Terms Letter Dt: 08.04.17 and Subsequent Correspondence

With reference to the above, we are pleased to issue firm Work Order for Fixing, Testing & Commissioning of Automatic Motorized and Manual Gates for E-Loco Factory at Madhepura, Bihar, India as per the documents enclosed herewith as Annexures and the Terms & Conditions as detailed below. The technical specification sent to you as part of the enquiry documents, subsequent MOM (technical & commercial), and all other terms & conditions (except otherwise specifically agreed to in writing) as specified hereunder and to be read along with attached annexures, form an integral part of this Work Order.

Sl. No.	Item	Description	UOM	Quantity	Unit Rate	Amount INR
Details As Per Annexure-1						
					Total	1,05,000

Total in Words INR One Lakh Five Thousand **Only**

1.0	**Scope of Work:** The Scope shall include unloading, Storage, shifting, Installation/ Erection, Testing and commissioning of Automatic Motorized and Manual Gates as per project technical specification for E-Loco Factory at Madhepura, Bihar, India
2.0	**Contract Price Basis:** The Total Contract Price shall remain firm and fixed throughout execution of Contract and on fulfillment of all Contractual obligations. GST will be applicable from the date of notification. On introduction of GST, subvendor/subcontractor derives any benefit (either directly or indirectly) the vendor/subcontractor should pass on the same to the main contractor (TPL) proactively.
3.0	**Service Tax:** Service tax shall be payable extra at actuals on submission of documentary evidence.Statutory variation in the service tax during original execution period shall be TPL's account.
4.0	**Works Contract Tax:** Not applicable
5.0	**Completion Schedule:** Fixing & Commissioning shall be completed within one month from the date of Notice to Proceed (NTP)
6.0	**Recoveries for delay in work completion:** In case of delay in work completion schedule the delivery schedule mentioned at 5.0 above for reasons attributable to you, liquidated damages shall be applicable at the rate of 1% of the Contract Price per week of delay or part thereof subject to a maximum of 10% of Contract Price.
7.0	**Contract Performance Bank Guarantee:** M/s NIHVA shall furnish Contract Performance Bank Guarantee for 10% of the contract price in TPL's format within fifteen (15) days of receipt of this WO and same shall be valid till the end of Warrantee Period. The Bank Guarantee shall be from any Nationalized Bank or Bank acceptable to TPL.
8.0	**Guarantee Period / Defect Liability Period:** The Supplier shall be responsible for the rectification of defective materials/defective in workmanship for a period Twenty-Four (24) months from the date of taking over (After completion

TATA PROJECTS LIMITED
Registered Office : "Mithona Towers-1" 1-7-80 to 87 Prenderghast Road Secunderabad - 500 003 Telangana India
Phone +91-40-6623 8801 Fax 6617 2535
CIN : U45203TG1979PLC057431 e-mail tpl@tataprojects.com www.tataprojects.com

	of PG Test and FAC) of the works by the MELPL/ Clients. Any defects discovered and brought to the notice of the contractor forthwith shall be attended to and rectified by him at his own cost and expense. In case the M/s NIHVA fails to carry out these rectifications, the same may without prejudice to any other right or remedy available, be got rectified by TPL/ MELPL at the cost and expense of the M/s NIHVA.
9.0	**Payment Terms:** 80% Progress-80% payment after installation within 30 days 10% Progress-10% payment shall be released within 30 days period of the commissioning of the material. 5% Progress-5% of the payment shall be released within 30 days after PAC 5% Progress-5% of the Payment (Retention amount) shall be released within 30 days after successful completion of PG test and Final Acceptance Certificate (FAC)
10.0	**Special Instructions for submission of Invoices and GST compliance for Payment:** We have a system of making payment to our vendors through RTGS (Real Time Gross Settlement) for which you shall submit your letter with bank details countersigned by your banker in the format (Annexure-RTGS) for release of payment. **GST Compliance:** a) Mobilisation advance (if any) for supply of goods/services will be subject to GST. b) If there is a loss of credit or additional liability and/or interest etc., arising due to non-compliance by the supplier of goods/services, the same shall be paid by the supplier to the main contractor (TPL). c) If there is any delay in remittance of GST liability to statutory authorities by the supplier of goods/services, the same shall be withheld from the payment of RA bill, and the payment shall be released only after submission of documentary proof pertaining to such remittance. d) If the bill is not technically and commercially correct, payment will be withheld with respect to any liability to (TPL).
11.0	**Quantity Variation:** The unit rate shall remain valid and firm with no limit on variation in quantities of individual items, provided that the total Contract Price remains within +/-25% of original value of the Contract.
12.0	**Risk Purchase:** During execution of this order, if any delay is observed due to reasons attributable to you other than Force Majeure conditions which may had cause delay in completion of the work, TPL shall be at liberty to cancel the contract,totally or partially, at any point of time without assigning any reasons,whatsoever, and take alternative measures at your risk and cost.
13.0	**Tax Deduction At Source (TDS):** TDS shall be deducted at actual applicable rates from all payments including advances
14.0	**Site Working Conditions:** As per relevant clause of Annexure of GCC
15.0	**Inspection-Field Quality Assurance:** As per relevant clause of Annexure enclosed to this WO
15.1	**Penalty clause for Quality violations**: For any Work not conforming to the approved FQP, drawings, specifications and codes, an amount equivalent to 5% of the current RA bill / the assessed value of rework shall be withheld towards non-adherence. This amount shall be released as under. A) 3% after Satisfactory completion of correction/rework and within the agreed time Schedule and upon certification/acceptance by TPL/Owner B) Balance 2% together with final bill settlement, if the delay so caused has not (a) affected the Project schedule and (b) resulting imposition of LD by Owner/Customer
16.0	**Construction Water & Construction Power:** Construction Power and Water shall be provided by TPL free of cost at Single point and further distribution shall be in your scope as agreed upon.
17.0	**Other Facilities / Requirements:** / Way bills are required for supply of Project material, same shall be provided by TPL.
18.0	**Safety Requirements:** Uncompromising Quality and Safety standards are considered as part of work carried out at all Project sites at TPL and therefore zero tolerance towards non-compliance. Site activities require total compliance to Safety Procedures and Guidelines. Accordingly, all site works carried out by your personnel deployed at Project Site shall strictly comply to the Safety Procedures, Norms stipulated in the GCC-Safety-Rev 02 enclosed to this Work Order. **Penalties for Safety Lapses:** Any violation in adhering to the terms and conditions stipulated in our GCC-Safety Rev 02 would also attract penalties payable by you as mentioned in clause No.3.28 therein.
19.0	**Statutory Requirements:** As per relevant clause of Annexure in GCC enclosed to this Contract
20.0	**LD / Penalty / Price Reduction for shortfall in Performance Guarantee:** As per relevant clause of Annexure in GCC enclosed to this Contract

21.0	**Other Terms & Conditions**: 1. All other terms and condition not specifically mentioned in the order shall be as per General conditions of the Contract and Scope Matrix. 2. Labour cess shall be payable extra by TPL. 3. The scope of work includes but not limited to the BOQ. Completeness of the supply in its entirety shall be the responsibility of M/s NIHVA. Any equipment, accessories which may not be specifically mentioned in the technical specification & drawing but of Good Engineering practice / necessary for the satisfactory completion of the project shall be part of your scope only
22.0	**Vendor's Help Desk:** Vendor shall forward their feedback in the "Vendor feedback Form" attached as Annexure-9 to this Order to the "Vendor Help Desk" in Tata Projects Limited to the group e-mail ID: vendors helpdesk@tataprojects.com for appropriate response from the group, on any critical issues related to execution of this order for which response is unduly delayed by the concerned contact persons from projects, Finance and SCM as indicated in the Order.
23.0	**Business Ethics:** Tata Projects Ltd. is committed to operating its business conforming to the highest moral and Ethical standards. This commitment underpins everything that we do In connection with this Purchase Order/ Works order. Tata Projects Ltd., shall work with suppliers and service providers who share similar value and demonstrate the same values. We expect our suppliers & service providers to conform to the Anti Fraud Policy, Whistle Blower Policy and Tata Code of Conduct (TCoC) in interactions with, and on behalf of us, including respecting the confidentiality of information shared with them. Tata Projects Ltd represents and covenants that it has not made, offered, Paid, Promised or authorized, and will not make, offer, pay, promise or authorize, the payment or gift of money or anything of value directly or indirectly to any party. in exchange for a business advantage, including a commitment to expedite or perform a routine action. You are requested to visit our Website www.tataprojects.com for viewing the full text of Anti Fraud Policy. Whistle Blower Policy and TATA Code of Conduct. Any concerns in violation of ethical business practices may be reported to tpl-whistleblower@tataprojects.com.
24.0	**Order Acceptance** :
24.1	This order is being issued to you in "Triplicate". Please return one acceptance copy of this order to Mr.K Srinivas Jadala, Sr.Manager -SCM and second acceptance copy to Mr H.Ranga Swamy , Manager-Projects, BU- C &E duly signed on each page with your Company's seal as a token of your acceptance of this order with all Terms & Conditions . In case no reply is received within 7 days, it shall be deemed that this Work Order has been accepted by you.
24.2	Please expedite return of your acceptance copies as advised herein immediately on receipt of the order.
25.0	**Post Order Correspondence:**
25.1	Please quote our Work Order No. BU-C&E/E-Loco Green Field Factory/26560 dated 15-MAY-17 in all your future correspondence which shall be addressed to Mr.Ramesh P, GM- Projects. Copies of correspondence involving commercial matters shall be marked to Mr.K Sunder Rao, Asst. Vice President -SCM.
25.2	All your invoices for Payment shall be forwarded in Original PLUS 1 extra copy to Central Bill Desk at Corporate Office, TATA PROJECTS LIMITED, "Mithona Towers -1",1-7-80 to 87, Prenderghast Road, Secunderabad -500003. Please note that the above requirement will ensure seamless processing of your invoices While forwarding the invoices, please also ensure that all supporting documents required for processing of invoices are enclosed. For this purpose, we recommend that a check list be submitted together with your invoices

Yours truly
for TATA PROJECTS LIMITED

15/05/17

K Sunder Rao
Asst. Vice President -SCM

Ramesh P
GM- Projects

TPL Internal Ref: TPL5045150520171730

Annexure-1 to W.O. No. BU-C&E /E-Loco Green Field Factory /26560 Dt: 15-MAY-17

Sl. No.	Item	Description	UOM	Quantity	Unit Rate	Amount
1	9021990515	FIXING,OF MILD STEEL OPENABLE SINGLE/DOUBLE LEAF GATE,WD 6 X HT 1.8 M, AT MAIN ENTRANCE TO ADMIN BUILDING	Numbers	1.00	10,000.00	10,000
2	9021990516	FIXING,OF MILD STEEL OPENABLE SINGLE/DOUBLE LEAF GATE,WD 7.2 X HT 1.8 M, AT MAIN ENTRANCE TO COMMERCIAL AND BUSINESS CENTRE	Numbers	1.00	10,000.00	10,000
3	9021990512	FIXING,OF MILD STEEL AUTOMATIC MOTORIZED SLIDING GATE,WD 8 X HT 1.8 M, AT MAIN ENTRANCE TO LPC	Numbers	1.00	15,000.00	15,000
4	9021990514	FIXING,OF MILD STEEL AUTOMATIC MOTORIZED SLIDING GATE,WD 7.2 X HT 1.8 M, AT MAIN ENTRANCE TO RESIDENTIAL TOWNSHIP	Numbers	1.00	15,000.00	15,000
5	9021990513	FIXING,OF MILD STEEL AUTOMATIC MOTORIZED SLIDING GATE,WD 8 M X 1.8 M HEIGHT AT MAIN ENTRANCE TO FACTORY	Numbers	1.00	15,000.00	15,000
6	9021990510	FIXING,OF WICKET GATE,WD 1.5 X HT 1.8 M	Numbers	5.00	5,000.00	25,000
7	9021990511	FIXING,OF MILD STEEL AUTOMATIC MOTORIZED SLIDING GATE,WD 18 X HT 1.8 M, AT MAIN ENTRANCE TO THE SITE	Numbers	1.00	15,000.00	15,000
					Total Order Value (Rounded to nearest INR)	**1,05,000**
Total Order Value (Rounded off) in Words INR One Lakh Five Thousand Only						

K Sunder Rao
Asst. Vice President -SCM

Ramesh P
GM- Projects